

SENATE No. 1151

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve for a commission to review, replace, and eliminate the Grand Jury System.

PETITION OF:

NAME:

Vincent Dixon

DISTRICT/ADDRESS:

SENATE No. 1151

By Mr. Lewis (by request), a petition (accompanied by resolve, Senate, No. 1151) of Vincent Dixon, that provisions be made for an investigation and study by a special commission to review, replace, and eliminate the Grand Jury System. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1031 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve for a commission to review, replace, and eliminate the Grand Jury System.

1 ~~Resolved~~, 1.) A Resolve to review, consider, evaluate, and/or replace, the Grand Jury
2 System as is known, and to establish a suitable body and/or Special Commission to consider this
3 matter.

4 2.) Over many years, the utility, and fairness, of the Grand Jury System, has been called
5 into question. Recent events in various local area locations, states, and other jurisdictions have
6 further raised questions as to its proper role, if any, in a properly functioning system of justice.

7 3.) The Commonwealth of Massachusetts, having been a pioneer in reform of various
8 legal procedures, should consider such changes as are appropriate in this area.

9 4.) It has been suggested that since the Grand Jury System originated in England and/or
10 Great Britain, that we are influenced by it. Thus, the apparent fact that its use in England, and/or

Great Britain has apparently been largely ended, should raise questions, as to whether we continue to use it ourselves.

Other jurisdictions, across The United States, have also eliminated the use of Grand Juries, at least in their present form, and this further suggests the need for analysis as to their use.

5.) A Special Commission shall be established by this Resolve, and/or additional suitable legislation, to investigate, and recommend, appropriate actions, and reforms.

6.) Upon the establishment of a suitable Special Commission, it should consider relevant alternative legal mechanisms, including examining available data, and information, as to result, results; and streamlined processes by which appropriate charges may, and/or must be brought to Courts, by appropriate standards.

7.) Membership of such a Commission, shall include the Dean of each Law School, in Massachusetts, or their designee; the Constitutional Officers of Massachusetts, or their designees; at least one (1) individual appropriate representative each, of the Judiciary, Law Enforcement including District Attorneys, and Sheriffs, members of the general law profession, representatives of constituencies, particularly concerned with the legal process such as legal defenders, and legal reformers; and other relevant individuals. The Commission, shall select a Chair, and a Vice Chair, from the membership of the body, and shall be authorized to expend reasonable expenses, to accomplish their responsibilities.

8.) The Governor, and the Attorney General, shall be the Co-Appointing individuals, for the members of this Commission.

31 9.) This Commission shall hold public hearings, at no less than five (5) distinct locations,
32 including the Capital City of Boston, and four other regional locations, and collect useful
33 information, including that of historical legal development; shall make general findings, useful
34 analysis, and specific recommendations. Since these matters are important, a timely report
35 should be issued within twenty-four (24) months, from the completion of the appointments of its
36 members.